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A PROCLAMATION TO RATIFY THE REVISED
CONSTITUTION, 2001, OF THE SOUTHERN NATIONS,
NATIONALITIES AND PEOPLES REGIONAL STATE

Whereas, it is found necessary to indicate particularly the separation of power, and needs to be transparent and efficient of state organs; and proclaim, the existing Constitution of the Southern Nations, Nationalities and Peoples' Regional State, which consulted upon and ratified through elected representatives of the Peoples of the Region, on 22nd day of June, 1995;

Now, therefore, in accordance with power entrusted to it under Article 49 sub-Article 3(a) and Article 102, of the Constitution of the Southern Nations, Nationalities and Peoples Regional State, it is thereby proclaimed as follows:

1. *Short Title*

This proclamation may be cited as the "Revised Constitution, 2001, of the Southern Nations, Nationalities and Peoples Regional State Proclamation NO.35 2001."

2. *Approval*

The revised Constitution, 2001, of the Southern Nations, Nationalities and Peoples' Regional State has approved after deeply assessed, the provisions, and contents of the Constitution of the Southern Nations, Nationalities and Peoples' Regional State Proclamation NO. 1/1995.

3. *Effective Date*

The Proclamation shall come in to force as of the 12th day of November, 2001.

Done at Awassaa, this 12th day of November, 2001

Hailemariam Desalegn
Chief Executive of the
Southern Nation, Nationalities
and Peoples' Regional State

Preamble

We, the Southern Nations, Nationalities and Peoples:

Dedicated to ensure the supremacy of the law, to advance our economic and social development to further develop our language, culture and unity, and consolidate the peace and prospect of a democratic order which our struggle and sacrifices have brought about in a Region we have established on the basis of equality and common understanding by using our right of selfdetermination;

Convinced that the fulfilment of these objectives in our State requires full respect of individuals and nations, nationalities and peoples fundamental rights and freedoms, recognition of the equality of sex and the observance of languages and religions without any discrimination;

Convinced that the continuing to live with our proud cultural legacies in the State we have long inhabited, we have through continous interactions on various forms and levels, built up common interests and outlooks;

Cognizant that our future commn destiny can best be served by rectifying the unjust relationship which we inherited from the past dictatorial regimes and by further promoting our shared interest;

Recognized that the existing Constitution of Southern Nations Nationalities and Peoples' which adopted on 22nd June, 1995 through our representatives, does not indicate accountability, transparency, efficient organizational structure of state organs clearly and unable to bring fast socio-economic development;

Therefore, it is necessary to revise the existing Constitution, an instrument that binds us in a mutual commitment to fulfil the objectives and principles set forth above; we discussed and adopted the revised Constitution of Southern Nations, Nationalities and Peoples' on this 12th day of November 2001, in Awassa, by an extra-ordinary meeting of the State Council.

CHAPTER ONE GENERAL PROVISIONS

Article 1

Nomenclature of the Regional State

This constitution proclaims the democratic establishment of the Southern Nations, Nationalities and Peoples' Regional State. Accordingly, this State shall be known as The Southern Nations, Nationalities and Peoples' Regional State.

Article 2

Boundaries of the State

Without Prejudice to the boundaries stated in the Constitution of the Federal Government, the boundaries of the Southern Nations, Nationalities and Peoples' Regional State shall be those of the Zones and Special Weredas.

Article 3

The State Flag

The Southern Nations, Nationalities and Peoples' Regional State shall have its own flag and emblems. The State flag shall consist of the blue at top, white in the middle and red at the bottom, and shall have a State emblem hut at the center. Particulars shall be determined by law.

Article 4

The State Anthem

The State Anthem shall reflect the ideals of the constitution, the commitment of the peoples of the State to live together with the rest peoples of Ethiopia in a democratic order and of their common destiny. Details shall be determined by law.

Article 5
Languages

1. All languages in the Region shall enjoy equal State recognition.
2. Amharic shall be the working language of the Regional State.
3. Zones and Special Woredas may determine their respective working languages in their own Councils.

Article 6
Capital City of The State

The Capital City of the State shall be Awassa.

Article 7
Expression of Gender

Provisions of this Constitution set out in the masculine gender shall also apply to the feminine gender.

CHAPTER TWO
THE FUNDAMENTAL
PRINCIPLES OF THE CONSTITUTION

Article 8
Power of the People

Without prejudice to the supremacy of the Constitution of the Federal Democratic Republic of Ethiopia:

1. All power of the Regional State resides in the peoples of the Southern Nations, Nationalities and Peoples' Regional State;
2. Peoples' power shall be manifested through their elected representatives and through their direct democratic participation.

Article 9
Supremacy of the Constitution

Without prejudice to the supremacy of the Constitution of the Federal Democratic Republic of Ethiopia:

1. This Constitution shall be the supreme law of the Regional State. Any law, customary practice or decision of any governmental organ or official which is inconsistent with this Constitution shall be of no effect;
2. All the dwellers of this State, governmental organs,, political organizations and other associations along with their official shall be bound by this Constitution and be responsible for its observance;
3. The assumption of state power in any way except in accordance with the provisions of this constitution is prohibited.

Article 10
Human and Democratic Rights

1. Human rights and freedoms are inviolable and inalienable. They are inherent in the dignity of human beings.
2. Human and democratic rights of peoples and citizens shall be respected.

Article 11
Separation of State and Religion

1. State and religion are separated from each other.
2. There shall be no state religion.
3. The State shall not interfere with religious activities and religion shall not interfere with state affairs.

Article 12

Conduct and Accountability of the Government

1. The conduct of the affairs of the government shall be transparent.
2. An elected representative may be recalled if the electorate lack confidence in him. Particulars shall be determined by law.
3. Any Public official or representative is accountable for any failure in official duties.

CHAPTER THREE FUNDAMENTAL RIGHTS AND FREEDOMS

Article 13

Effectiveness and Definition

1. All legislative, executive and judicial organs of this State, at all levels of government, shall have responsibility and obligation to observe and enforce the provisions enclosed in this Chapter.
2. The fundamental rights and freedoms specified in this Chapter shall be interpreted in conformity with the Universal Declaration of Human Rights, International Covenants on Human Rights and Principles of other relevant international instruments which Ethiopia has adopted.

PART ONE HUMAN RIGHTS

Article 14

The Right to Life, the Security of Person and Liberty

Every person has the inviolable and inalienable right to life, security of person and liberty

Article 15

The Right to Life

Every Person has the right to life, no person shall be deprived of his life except as a punishment for a serious criminal offence determined by law.

Article 16

The Right of Security of Person

Everyone has the right to protection against bodily harm.

Article 17

The Right to Liberty

1. No one shall be deprived of his liberty except in accordance with the established legal procedures.
2. No person shall be subjected to arbitrary arrest, and be detained without a charge or conviction.

Article 18

Prohibition Against Inhuman Treatment

1. Everyone has the right to protection against cruel, inhuman or degrading treatment or punishment.
2. No one shall be held in slavery or servitude. Trafficking in human beings for whatever purpose is prohibited.
3. No one shall be required to perform forced or compulsory labour.
4. For the purpose of sub-Article 3 of this Article, the term "Forced or compulsory labor" shall not include:
 - (a) Any work to be done in the ordinary course of imprisonment or during conditional release from such imprisonment

ment which is imposed in accordance with the law;

- (b) Any service exacted in lieu of military service in case of conscientious objectors;
- (c) Any service exacted in case of emergency or calamity threatening the life or well-being of the community;
- (d) Any economic or social development activity voluntarily performed by a community within its locality.

Article 19

Rights of person Arrested

1. Person arrested has the right to be informed immediately, in a language he understands of the particular of the charge and the reason for his arrest.
2. Person arrested has the right to remain silent upon arrest, he has the right to be informed promptly in a language he understands, that any statement he makes may be used as evidence against him in court.
3. Arrested person has the right to be brought before the court of law within 48 hours of his arrest excluding the time reasonable required for the journey from the place of arrest to the court. On appearing before the court, he has the right to be given prompt and specific explanation of the reasons for his arrest due to the alleged crime.
4. Every person has an inalienable right to petition the court to order his physical release where the arresting police officer or the law required fails to bring him before a court within the prescribed time and to provide reasons for his arrest. Where the interest of justice requires, the court may order the arrested person to remain in custody or, when requested, remand him for a time strictly required to carry out the necessary investigation. In determining the additional time necessary for investigation the court shall

ensure that the responsible law enforcement authorities carry out the investigation respecting the arrested person right to a speedy trial.

5. Every arrested person shall not be compelled to make confession or to produce evidence against him statements made or evidences obtained through coercion shall not be admissible.
6. Every arrested person has the right to be released on bail. The court may, however, in exceptional cases prescribed by law, deny bail right or demand adequate guarantee for the conditional release of the arrested person.

Article 20

Rights of Accused Person

1. Accused person has the right to public trial before an ordinary court of law within a reasonable time after having been charged; however the court may hear cases in a closed session only with a view to protecting the right to privacy, public morals and national security.
2. Accused person has the right to be informed of the particulars of the charge brought against and to be given the charge in writing.
3. Any person charged with penal offence has the right to be presumed innocent until proved guilty according to law and not to be compelled to testify against himself.
4. Accused person has the right to access to any evidence produced against him to examine witnesses testifying against him to adduce or make adduced his own defensive evidence and to obtain the attendance of a examination of witnesses on their behalf before the court.

5. Accused person has the right to be represented by a legal counsel of his choice, and, if he does not have sufficient means to pay for it and miscarriage of justice would result, to be provided with legal representation at state expense.
6. He has the right to appeal to the competent court on judgement or order passed by a court which heard the case.
7. He has the right to request for the assistance of an interpreter at state expense where the court proceedings are conducted in a language he does not understand.

Article 21

The Rights of Person Held in Custody and Convicted Prisoner

1. A person held in custody and person imprisoned upon conviction and sentenced has the right to treatment respecting his human dignity.
2. A person shall have the opportunity to communicate with, and to be visited by, his spouse or counsel, partner, close relative, friend, religious councilors, medical doctors and his legal advisor.

Article 22

Non-retroactivity of Criminal Law

1. No one shall be held guilty of any penal offence on account of any act or omission which did not constitute a penal offence at the time when it was committed or omitted; nor shall a heavier penalty be imposed on any person than the one that was applicable when the criminal offence was committed.
2. Notwithstanding the provisions of sub Article of this Article allow promulgated subsequent to the commission

offence shall apply if it is advantageous to the accused or convicted person.

Article 23

Prohibition of Double Jeopardy

No person shall be liable to be tried or punished again for an offence for which he has already been finally convicted or acquitted in accordance with criminal law and procedure.

Article 24

Right to Honour and Reputation

1. Everyone has the right to have his honour and good reputation are respected.
2. Everyone has the right to freely develop his personality in a manner compatible with the rights of other citizens.
3. Everyone has the right to be recognized as a person everywhere.

Article 25

Rights of Equality

all persons are equal before the law. All persons are entitled, without any discrimination, to equal protection of the law. Accordingly, all persons have the right to equal and effective protection of the law without discrimination on grounds of race, nation, nationality, colour, sex, language, religion, political opinion, social origin, wealth, birth or other status.

Article 26

Right to Privacy

1. Everyone has the right to privacy. This right shall include the right not to be subjected to searches of his home, person or property, including the seizure of any property under his personal possession.
2. Everyone has the right to the inviolability of his notes and correspondence including postal letters, and communications made by means of telephone, telecommunication and electronic devices.
3. Government officials shall respect and protect these rights. No restrictions may be placed on the enjoyment of such rights except in compelling circumstances and in accordance with specific laws whose purpose shall be the safeguarding of national security or public peace, the prevention of crimes or the protection of health, public morality or the rights and freedoms of others.

Article 27

Freedom of Religion, Conscience and Belief

1. Everyone has the right to freedom of thought, conscience, and religion. This right shall include the freedom to hold or adopt and religion or belief of his choice, and the freedom, either individually or in community with others, in public or private to manifest his religion or belief in workshop, observance, practice and teaching.
2. Subject to the provisions of sub-Article 2 of Article 118, believers may establish institutions of religious education and administration in order to propagate and organize their faith.

3. No one shall be subject to correction or other means which would restrict or prevent his freedom to hold a belief of his choice.
4. Parents and legal guardians have the right to bring up their children ensuring their religious and moral education in conformity with their own convictions.
5. The right to express one's religion or belief may be subject only to such limitations as are prescribed by law and are necessary to protect public safety, public health, education, public morality or fundamental rights and freedoms of other citizens, and to guarantee the independence of the state from religion.

Article 28

Crimes Against Humanity

Criminal charges on persons who committed offences against humanity, defined by international treaties which Ethiopia ratified or by the Ethiopian domestic laws, such as genocide, Summary executions, forcible disappearance or torture, shall not be barred by period of limitation, such offences may not be commuted by amnesty or pardon of the legislature or any other state organ.

PART TWO

DEMOCRATIC RIGHTS

Article 29

Right of Thought, Opinion and Expression

1. Everyone has the right to hold opinions without interference.
2. Everyone has the right to freedom of expression without any interference. This right shall include freedom to seek, receive and impart information and ideas regardless of frontiers either

orally, in writing or in print, in the form of arts, or through any media of his choice.

3. Freedom of press and other mass media as well as freedom of artistic creativity is guaranteed. Freedom of press shall specifically include the following elements:
 - (a) Prohibition of any form of censorship;
 - (b) Access to information of public interest.
4. In the interest of free flow of information, ideas and opinions which are essential to the functioning of a democratic order, the press as an institution shall enjoy legal protection in order to ensure its operational independence and its capacity to entertain diverse opinions.
5. Mass media financed by or under the control of the State shall operate in a manner ensuring its capacity to entertain diversity in the expression of opinion.
6. These rights can be subjected to limitations only by laws which are issued based on the principle that freedom of expression and information cannot be limited on account of the content or effect of the point or view expressed. Legal limitations can be imposed on these rights in order to protect the well-being of the youth, and the honour and reputation of individuals. War propaganda as well as public expression of opinion intended to injure human dignity shall be prohibited by law.
7. Any citizen who violates any legal limitations on the exercise of these rights may be held liable under the law.

Article 30

The Right of Assembly, Demonstration and Petition

1. Everyone has the right to assemble and to demonstrate together

with others and to petition peaceably and unarmed, and to petition. Appropriate regulations may be made in the interest of public convenience relating to the location of open-air meetings and the route of movement of demonstrations or, for the protection of democratic rights, public morality and peace during such a meeting or demonstration.

2. This right does not exempt from liability under laws enacted to protect the well-being of the youth, or the honour and reputation of individuals, and laws prohibiting and propaganda of war and any public expression of opinions intended to injure human dignity.

Article 31

Rights of Association

Every person has the right to freedom of association for any cause or purpose. Organizations formed, in violation of appropriate laws or to illegally subvert the constitutional order, or which promote such activities are prohibited.

Article 32

Freedom of Movement and Right to choose Residence

Without prejudice to the federal Constitution, Article 32, any resident of this State or any person lawfully in this State has, the right to liberty of movement and freedom to choose his residence, right to job, right to possession of private property as well as to leave the region at any time he wishes to.

Article 33

Right to participation in Activities

Any Ethiopian who speaks the working languages of the Region, the Zone or the special wereda has the right to be assigned or elected to serve in governmental and social activities of the State, the Zone or Special Wereda.

Article 34

Marital, Personal and Family Rights

1. Men and women, without any distinction as to race, nation, nationality or religion, who have attained marriageable age as defined by law, have the right to marry and found a family. They have equal rights while entering into, during marriage and at the time of divorce. Laws shall be enacted to ensure the protection of rights and interests of children at the time of divorce
2. Marriage shall only be concluded with the free and full consent of the intending spouses.
3. The family is the natural and fundamental unit of society and is entitled to protection by the society and the State.
4. In accordance with provisions to be specified by law, a law giving recognition to marriage concluded under systems of religious or customary laws may be enacted.
5. This constitution shall not preclude the adjudication of disputes relating to personal and family laws in accordance with religious or customary laws, with the consent of the parties to the dispute. Particulars shall be determined by law.

Article 35

Rights of Women

1. Women shall, in the enjoyment of rights and protections provided for by this Constitution, have equal rights with men.
2. Women have equal rights with men in marriage as prescribed by this constitution.
3. The historical legacy of inequality and discrimination suffered by women in Ethiopia taken into account, women, in order to remedy this legacy, are entitled to affirmative measures. The purpose of such measures shall be to provide special attention to women so as to enable them complete and participate on the basis of equality with men in political, social and economic life as well as in public and private institutions.
4. The State shall enforce the right of women to eliminate the influences of harmful customs. Laws, customs and practices that oppress women or cause bodily or mental harm to women are prohibited.
5. Women shall have a right to equality in employment, promotion, pay, and transfer of pension entitlements.
- 6 (a) Women workers employed in government or private enterprises have the right to: maternity leave with full-pay. The duration of maternity leave shall be determined by law taking into account the nature of her work, the health of the mother and the well-being of the child and the family.
(b) Maternity leave may, in accordance with the provisions of law, include prenatal leave with full pay.
7. to prevent harm arising from pregnancy and childbirth and in order to safeguard their health, women have the rights of access to family planning education, information and capacity.

8. Women have the rights to acquire, administer, control, use, and transfer property. In particular, they have equal rights with men with respect to use, transfer, administration and control of land. They shall also enjoy equal treatment in the inheritance of property.
9. Women have rights to full consultation in the formulation of national regional development policies, the designing and execution of projects, and particularly in the case of projects that affecting the interest of women.

Article 36
Rights of Children

1. Every child has the right:
 - (a) to life;
 - (b) to a name and nationality;
 - (c) to know and be cared for by his or her parents or legal guardians;
 - (d) not to be subjected to exploitative practices; neither to be required nor permitted to perform work which may be hazardous or harmful to his or her education, health or well-being.
 - (e) to be free of corporal punishment or cruel and inhuman treatment in schools and other institutions responsible for the care of children.
2. In all actions concerning children undertaken by public of and private welfare institutions, courts of law, administrative authorities or legislative bodies, the primary consideration shall be the best interests of the child.
3. Juvenile offenders admitted to corrective or rehabilitative

institutions and juveniles who become wards of the State or who are placed in public or private orphanages, shall be kept separately from adults.

4. Children born out of wed-lock have equal rights with children born of wedlock.
5. The State shall accord special protection to orphans, and shall encourage the establishment of institutions which ensure and promote their adoption and advance their welfare, and education.

Article 37
Right of Access to Justice

1. Any person has the right to bring justifiable matter to, and obtain a decision or judgement from, by a court of law or another competent body with judicial power.
2. The decision or judgement referred to under sub-Article 1 of this Article may also be sought by:
 - (a) Any association representing the collective or individual interest of its members; or
 - (b) Any group or person who is a member of, or represents a group with similar interest.

Article 38
The Right to Vote and to be Elected

1. Every Ethiopian national, without any discrimination based on colour, race, religion, political or other opinion or other status has the following rights:
 - (a) to take part in the conduct of public affair directed and through freely chosen representatives;
 - (b) On the attainment of 18 years of age to vote and 21 years of age, to be elected in accordance with law;

- (c) to vote and be elected at periodic elections to any office at all governmental level, election shall be held by universal suffrage and secret ballot in order to ensure the free expression of the will of the electorate;
- 2. The right of every person to be a member of political parties, labour unions, trade organizations, employers' and professional associations shall be respected if he meets the general and special requirements stipulated by such organizations.
- 3. Election to positions of responsibilities within the organizations mentioned under sub-Article 2 of this Article shall be conducted in a free and democratic manner.
- 4. The provisions of sub-Article 2 and 3 of this Article shall apply to civic organizations which significantly affect the public interest.

Article 39

National Rights of the Southern Nations

Nationalities and Peoples Regional State

In accordance with the provisions of the Ethiopian Federal Democratic Republic Constitution the, Nations Nationalities and peoples of the Southern Nations, Nationalities and Peoples Regional State have unconditional right of self-determination, including to secession. Accordingly, each Nation, Nationality and People have the right to:

- 1. Preserve its identity and have it respected, promote and preserve its heritage, artifact and history, and use and develop its own language and culture;
- 2. Administer its own affairs within its own defined territory and effectively, impartially and justly participate in the activities of

- the Federal government;
- 3. Establish its own governmental organizations pertinent to its geographical settlement and get fair representation in the State and Federal administration;
- 4. The right of self-determination, including secession, of every Nation, Nationality and Peoples in the Southern Nations, Nationalities and Peoples Regional State can be exercised:
 - (a) When a demand for secession has been approved by a two-thirds majority vote of the members of legislative council of the concerned Nation, Nationality or People;
 - (b) When the Federal Government has organized a referendum which must take place within three years from the time when it received the concerned council's decision for secession;
 - (c) When the demand for secession is supported by a vote of majority during the referendum;
 - (d) When the Federal Government transferred power to the Council of Nation, Nationality or People that demanded secession; and
 - (e) When the division of assets is effected in accordance with the law.
- 5. Nations, Nationalities or Peoples of the State have the right to establish, at any time, their own State.
- 6. The right of any Nation, Nationality or People, to form its own State is exercisable under the following procedures;
 - (a) When the demand for statehood has been approved by a two-thirds majority of the members of the Council of the Nation, Nationalities or People concerned, and the demand is presented in writing to the State Council;
 - (b) When the Council that received the demand has organized a referendum within one year to be held in the

- Nation, Nationality or People that made the demand;
- (c) When the demand for statehood is supported by a majority vote in the referendum;
- (d) When the state Council will have transferred its powers to the Nation, Nationality or People that made the demand; and
- (e) When the new State created by the referendum without any need for application, directly becomes a member of the Federal Democratic Republic of Ethiopia.

7. For the purpose of this Constitution, "Nation, Nationality or People" shall mean a group of people who have a large measure of common culture of similar custom, mutual intelligibility of language, belief in a common or related identities and who predominantly inhabit a contiguous territory.

Article 40

The Right to Property

1. The right of every dweller of the State to own private property shall be respected. Unless prescribed otherwise by law on account of public interest this right shall include the right to acquire, use, and dispose of such property by means of sale or bequest or by any other means of transfer subject to the limitations prescribed by law.
2. "Private property," for the purpose of this Article, shall mean any tangible or intangible product which has value and is produced by the labour, creativity, enterprise or capital of an individual citizen, associations which enjoy juridical personality under the law, or in appropriate circumstances, by communities specifically empowered by law to own property in common.

3. The right to ownership of urban or rural land and natural resources is exclusively vested in the state and in the people. Land is the common property of the people of the Regional State and shall not be subject to sale or to other means of exchange.
4. The farmers of the State have the right to obtain land without payment and not to be displaced from it. The details of its implementation shall be prescribed by law.
5. The nomads of the State have the right to get the land necessary for farming or grazing free of charge and not to be displaced from their land. Its implementation shall be determined by law.
6. Without prejudice to the exclusive right of people to ownership of land, the State shall ensure the right of Private investor to use land on the basis of payment arrangements to be determined by law. Particulars shall be determined by law.
7. Any person has the full right to the immovable property he builds on the land or to the improvements he brings about on the land by his labour or capital. This right shall include the right to sell, exchange, or bequeath it, and where the right of use expires to remove his property, to transfer his title or to claim compensation for it. Particulars shall be determined by law.
8. Subject to the right of private ownership of property, the Government may expropriate, on account of public interest, private property subject to advance payment of compensation commensurate to the value of the expropriated property.

Article 41

Economic, Social and Cultural Rights

1. Any inhabitant of the State and any Ethiopian who wishes to live in the state has the right to engage in any economic activity and to pursue occupation of his choice for his livelihood.

2. Any dweller of the State has the right to choose his means of livelihood, occupation and profession.
3. All inhabitants of the State have the right to equal access to government funded social services.
4. The Regional State has an obligation to allocate an ever increasing budget to provide with public health, education and other social services.
5. The Regional State shall allocate, as far as economic conditions permit, resources to provide rehabilitation and assistance to the physically and mentally disabled, the aged, and to children who are left without parents or guardians.
6. The Regional State shall pursue policies that aim at creating job opportunities for the unemployed and indigents, and shall undertake programmes and projects that create job opportunities.
7. The Regional State shall take the necessary steps to widen opportunities for the inhabitants of the State to find gainfull employment.
8. Farmers have the right to receive fair prices for their products that would lead to the improvement of their conditions of life and enable them to obtain an equitable share of the national wealth commensurate with their contribution. The Regional State shall be guided by this objective when formulating economic and social development policies.
9. The State has the responsibility to protect and preserve cultural and historical antiquities and to contribute to the promotion of arts.

Article 42

Rights of Labour

1. (a) Factory and service workers, peasant farm labourers,

other rural workers and government employees below a certain level of responsibility and whose working conditions so permit have the right to form associations so as to improve their employment and economic well-being. This right includes the right to form trade union and other associations, and to bargain with employers or other organizations that affect their interest.

- (b) The categories of workers mentioned in paragraph (a) of this sub-Article have the right to express grievances; including the right to strike.
 - (c) Government employees who can enjoy the rights provided under paragraphs (a) and (b) of this sub-Article shall be determined by law.
 - (d) Women workers have the right to equal pay to equal work.
2. Workers have the right to reasonable limitation of working hours, to rest, to periodic leaves with pay, to remuneration for public holidays as well as to a healthy and safe working environment.
 3. Without prejudice to the rights recognized under sub-Article 1 of this Article, laws enacted for the implementation of such rights shall establish procedures for the formation of trade unions and for the regulations of the collective bargaining process.

Article 43

The Right to Development

1. The inhabitants of the State have the right to improve living standards and to sustainable development.
2. The inhabitants of the State have the right to participate in national development activities, particularly, to be consulted

on the policies and projects affecting the community in which they are members.

3. The main objectives of the development activities of the State shall be to enhance the capacity of the Region's inhabitants for development and to meet their basic needs.

Article 44

Environmental Rights

1. The inhabitants of the State have the right to clean and healthy environment.
2. All persons who have been displaced or whose livelihoods have been adversely affected as a result of the Regional state programmes shall have the right to claim an adequate state assistance in the form of appropriate sum of money or other compensations including relation

CHAPTER FOUR

STRUCTURE OF THE REGIONAL STATE AND DIVISION OF POWER

Article 45

Administrative Hierarchies of the Regional State

1. The State is organized in Zones, Special Weredas, Weredas and Kebeles. However, the State Council may organize other administrative hierarchies and determine their powers and duties.
2. The Nations, Nationalities or Peoples in the Region shall have their own zonal or Special Wereda administration, delimited on the bases of the settlement pattern, languages, identities and consent of the people concerned.
3. Towns in the State shall have their own administration. Particulars shall be determined by law.

Article 46

Structure of the Organs of the Regional State

1. The State Council is the legislative body of the State; it is the highest authority of the Regional State and is accountable to the people whom it represents.
2. The Executive Council is the highest State organ and is accountable to the State Council.
3. The State's judicial power shall exclusively be vested in the Region's Courts.

Article 47

Powers and Functions of the State

1. All powers and functions which are not given expressly to the Federal Government in accordance with the Constitution of the Federal Democratic Republic of Ethiopia shall be vested in the Regional State.
2. Consistent with sub-Article of this Article, the Regional State shall:
 - (a) Formulate and execute the Regional policy, strategy and plan with respect to economic and social development;
 - (b) Issue and implement the State's Constitution and other regional laws;
 - (c) Administer land and other natural resources in accordance with the laws issued by the Federal Government;
 - (d) Establish a State administration that best advances self-rule; build a democratic order where the supremacy of the laws prevails, protect and defend the Federal and the State Constitution;
 - (e) Based upon the nationally recognized standards of qualification training and experience, enact laws concern-

of any vote he casts, or opinion he expresses in the Council, or shall any administrative action be taken against any member on such grounds:

- (b) No member of the Council may be arrested or prosecuted without the permission of the concerned Council except in the case of *flagrante delicto*;
- (c) May, in accordance with law, lose his mandate of representation upon lose of confidence by the electorate;
- (d) sub-Article 2(c) of this Article shall, accordingly, be applicable to councils of lower hierarchies;
- (e) No one may be a member of the State Council and the Council of Nationalities simultaneously.

PART ONE

STATE COUNCIL

Article 50

Members of the State council

1. Members of the State Council shall be: Elected for a term of five years by free, direct and fair elction conducted through secret ballot.
2. Elected from among candidates in each electoral district by a plurality of votes casted. The minority Nationalities and Peoples, shall have seats in the State Council, on the basis of special representation. Particulars shall be determined by law.
3. They are represntative of the peoples of the State as a whole, and they are accountable to:
 - (a) The Constitution;

- (b) The People; and
- (c) Their own conscience.

Article 51

Powers and Functions of the State Council

1. According to this Constitution, the State Council is the legislative body of the State.
2. Without prejudice to provision of the Federal Constitution, the highest political power regarding the internal affairs of the State is vested in the State Council.
3. Consistent with the provision of sub-Article 1 and 2 of this Article the State Council shall have the following powers and functions:
 - (a) Based on this constitution, issues different laws that are consistent with the Federal and other laws;
 - (b) Establishes additional administrative hierachies or self-administering regions by taking into account the size of the population, the width and socio-econimic activities within the Region;
 - (c) Without prejudice to the powers vested to the Federal Government, it shall ratify agreements concluded by the Executive body,
 - (d) Elects Chief Executive from among members of the State council. Upon recommendation by Chief Executive, it shall approve the appointment of the members of the Executive Council;
 - (e) Establishes the Regional Auditor General and Control office;
 - (f) Give amnesty based on law;
 - (g) Issues regulations necessary for the maintenance of

peace and security of the state; establish security and police force;

- (h) Approve social and economic programmes of the state;
- (i) Issues laws regarding the income sources of the State and approve State budget;
- (j) Establishes institutions necessary for the promotion of social services and economic development;
- (k) Appoints the President and Vice-President of the State Supreme court, the Auditor General and Vice-Auditor General;
- (l) Levies tax and duties on sources given to the State;
- (m) Issues laws regarding the State civil servants and their working conditions of services;
- (n) Ratify the decree of state of emergency;
- (o) Call and request the Chief Executive and other State officials. Investigate the Executive's conduct and discharge of its responsibilities.

Article 52

Political Power

1. A political party, or political parties that have the greatest number of seats in the State Council shall form the Executive and lead it.
2. The Provision of sub-Article 1 of this Article shall accordingly be applicable to Zonal, Special Wereda, Wereda and Kebele Administrative Councils.

Article 53

Powers and Functions of the Speaker

He shall:

1. Call and preside meetings of the State Council;
2. Direct all administrative affairs on behalf of the Council;

3. Enforce all disciplinary actions, the State Council takes on its members;
4. Determine, by law the organization of the Office of the State Council;
5. Coordinate standing and *ad hoc* committees of the Council;
6. Perform other duties that may be entrusted to him by law.

Article 54

Powers and Functions of Deputy Speaker

1. He shall perform duties which shall be specifically entrusted to him by the speaker.
2. He acts on behalf of the speaker in his absence or unable to exercise his absence or unable to exercise his powers and functions.

Article 55

Sessions of the State Council,

Duration of its Term

1. The presence of two-thirds of the members of the State Council constitutes a quorum.
2. The members of the State Council shall be elected for a term of five years. Elections for a new State Council shall be concluded one month prior to the expiry of the Council's term. The new Council shall convene within fifteen days of the conclusion of the elections.
3. The speaker of the Council may call an extraordinary meeting of the Council. He is also obliged to call an extraordinary meeting of the Council at the request of more than one-thirds of the members.
4. Meetings of the Council shall be public, the Council may, however, hold a closed meeting at the request of the Executive Council or members of the Council by a decision of more than half of the members.

Article 56

Decisions and Rules of Procedures

1. Unless otherwise provided in the State's Constitution, all decisions of the State's Council shall be passed by the majority vote of the members present.
2. The Council shall adopt rules and procedures regarding the organization of its work and of its legislative process.

Article 57

Dissolution of the Council

1. With the consent of the Council, the Chief Executive may cause the dissolution of the Council before the expiry of its term in order to hold new elections.
2. The Chief Executive, may, invite political parties to form a coalition government within two weeks, if the Executive Council of a previous coalition is dissolved because of the loss of its majority in the Council. The State Council shall be dissolved and new elections shall be held if the political parties can not agree to the continuation of the previous coalition or to form a new majority coalition.
3. If the Council is dissolved pursuant to sub Article 1 or 2 of this Article new election shall be held within six months of its dissolution.
4. The new Council shall convene within fifteen days of the conclusion of the election.
5. Following the dissolution of the Council, the previous ruling party or parties shall continue as a caretaker government. Beyond conducting the day to day affairs of government and organizing new elections, it may not enact new proclamations, regulations or decrees, nor may it repeal or amend any existing

law.

6. The provision of this sub-Article shall accordingly, be applicable to Zonal, Special Wereda, Wereda and Kebele Councils.

PART TWO

COUNCIL OF NATIONALITIES

Article 58

Members of the Council of Nationalities

1. The Council of Nationalities is composed of representatives of Nations, Nationalities and Peoples at least by one member
2. Each Nation, Nationality or People shall be represented by one additional representative for each one million of its population.
3. Members of the Council of the Nationalities shall be elected from among members of Zonal and Special Wereda Council. Nationalities which do not have representatives in Zonal Council shall be represented from members elected for Woreda Council. Their representation shall be approved by the concerned Council.

Article 59

Powers and Functions of the Council of Nationalities

The Council shall:

1. Interpret the State constitution;
2. Organize the Council of Constitutional Inquiry;
3. Decide on issues relating Nations, Nationalities or Peoples right to Zone, Special Wereda and Wereda Administration according to the State Constitution;

4. Promote/and consolidate the unity and the equality of the peoples of the region, based on their mutual consent;
5. Strive to find solution to disputes or misunderstandings that may arise between administrative hierarchies;
6. Create favorable condition in which history, culture and language of the Nationalities be studied.
7. Participate in the process of initiations and amendments of the State constitution;
8. Study, disputes between neighboring States and questions of boarder delimitation, submit to the House of Federation and follow up the implementation.

Article 60

Decisions and Rules of Procedure

1. The presence at a meeting of two-thirds of the members of the Council constitutes a quorum. All decisions of the Council require the approval of a majority of members present.
2. Members of the Council may vote only when they are present in person in the council.
3. The Council shall adopt rules and procedures regarding its work and legislative process.

Article 61

Budget

The Council of Nationalities shall submit its budget to the State Council for approval.

Article 62

Power and Function of the Speaker of the Council of Nationalities

He Shall:

1. Call and preside over the meetings;

2. On behalf of the Council, direct all its administrative affairs;
3. Enforce all disciplinary actions the Council takes of its members;
4. Coordinate standing and *ad-hoc* committees;
5. Organize the office of the Council
6. Discharge all responsibilities entrusted to him by the Council and by other laws.

Article 63

Powers and Functions of the Deputy Speaker

1. He shall perform duties which shall be specifically entrusted to him by the Speaker.
2. He acts on behalf of the Speaker in his absence or unable to exercise his powers and functions.

CHAPTER SIX

EXECUTIVE COUNCIL

Article 64

Powers of the Executive

1. The highest executive power of the State is vested in the Chief Executive and the Executive Council.
2. The Chief Executive and the Executive Council are accountable to the State Council.
3. In the exercise of State functions, members of the Executive Council are collectively responsible for all the decisions they make as a body.
4. 'Government' means the executive body of the State.

Articel 65

Executive Council

1. The Executive Council is composed of the Chief Executive, Deputy Chief Executive and^e the members of Heads of Bureaus. Particulars shall be determined by law.
2. The Chief Executive shall be Chairman of the Executive Council.
3. The Executive Council is accountable to the Chief Executive.
4. The Executive Council is accountable to the State Council for the decision it makes.

Articel 66

Powers and Functions of the Executive Council

Without prejudice to the provision of the Federal Constitution, the Executive Council shall have the following powers and functions:

1. Insures the implementation of laws and decisions issued by the State Council and Federal Government. It shall issues directives.
2. Organizes, Controls and direct the Executive Council, Executive bodies and various institutions of the State.
3. Draws up the state budget, and when approved by the State council, it shall implement it;
4. Formulates economic and social policies and strategies of the State, submits draft laws to the State council, when approved, it shall implement it;
5. Insures the observance of law and order in the State;
6. Issues regulations pursuant to powers vested, in it by the State Council;
7. Declares a state of emergency.

8. Appoints officials, in accordanc with the power entrusted to it under Articel 68, sub-Article 2 (e) of this Constitution;
9. Insures the protection and preservation of antiquities and natural resources in the State.
10. Performs other duties that may be entrusted to it by the State Council and by law.

Article 67

Appointment of the Chief Executive and Term of Mandate

1. The Chief Executive shall be elected, upon recommendation by a political party, or political parties that has the greatest number of seats in the State Council.
2. Unless otherwise provided in this Constitution, the term of office of the Chief Executive is for the duration of the mandate of the State Council.

Article 68

Powers and Functions of the Chief Executive

1. He is the Head, Chairman, of the Executive Council and President of the State.
2. Consistent with the provision of Sub-Article 1 of this Article, he shall have the following powers and functions:
 - (a) Lead, coordinate and represent the Executive Council;
 - (b) Sign a law submitted from State Council, Executive Council of Zonal and Special Wereda Councils within fifteen days, Published in *Debub Negarit Gazeta*. If he doesn't sign the law within fifteen days it shall take effect without his signature;
 - (c) Exercise overall supervision over the implementation of

policies, regulations, directives and decisions adopted by the Executive Council;

- (d) Select nominees for the post of the President and Vice-President of the State Supreme Court, and the Auditor General and Vice-Auditor General and submit to the State Council for approval;
- (e) Consistent with the provision of sub-Article 2(d) of this Article, assign these officials provisionally, when the state council is not in session. President and Vice President of Supreme Court assigned provisionally from among Judges of Supreme Court;
- (f) Select nominees for the post of Executive Council and submit to the State Council for approval. The Deputy Chief Executive shall be elected from among members of the State Council;
- (g) Other than those referred to in Sub-Article 2(d) and (f) of this Article, he selects nominees for the post of Heads and Deputies of the States economic, social and administrative establishments, and submit them to the Executive Council for approval.
- (h) Direct and Control, the states security and police forces that maintain law and order in the State
- (i) Direct, coordinate and control the administrative hierarchies;
- (j) Consistent with the provision of Article 67 (2) of this Constitution, call and open the first session of new States Council. Particulars shall be determined by law;
- (k) Discharge all responsibilities entrusted to him by other laws.

Article 69

Powers and Functions of the Deputy Chief Executive

The Deputy Chief Executive is accountable to the Chief Executive and the Executive Council and he shall:

- (a) Perform duties which shall be specifically entrusted to him by the Chief Executive;
- (b) Act on behalf of the Chief Executive in his absence or unable to exercise his powers and functions.

Article 70

Office of Chief Executive

1. The Chief Executive shall have an office.
2. The Office shall also serve as Office of the Executive Council
3. The Chief Executive shall select a nominee for the post of the special secretary and submit to the Executive Council for approval
4. The special secretary is accountable to the Chief Executive, and shall:
 - (a) Organize the office;
 - (b) Keep properly the documents of the Executive Council;
 - (c) Insure that the minutes of the Executive Council are properly kept;
 - (d) Perform other duties assigned to him by the Chief Executive.

Article 71

Establishment of Economic, Social and Administrative Institutions

Bureaus, commissions and other State institutions that perform,

coordinate and supervise the economic, social and administrative activities of the State shall be established by law.

CHAPTER SEVEN STRUCTURE AND POWERS OF THE COURTS

Article 72

Independence of the Judiciary

1. An independent judiciary of the State is established by this Constitution.
2. Special or *ad-hoc* courts which take judicial powers away from the regular courts or institutions legally empowered to exercise judicial functions and which do not follow legally prescribed procedures shall not be established.

Article 73

Customary and Religious Adjudication

Consistent with the provision of Article 34 Sub-Article 5 of this Constitution, religious and customary Courts that had state recognition and functioned prior to the adoption of the State Constitution shall be organized on the basis of recognition accorded to them by this Constitution.

Article 74

Judicial Power

1. Judicial Power in the State is exclusively vested in the courts.
2. Courts of any level shall be free from interference or influence of any governmental body, official, or any other source.
3. Judges shall exercise their functions in full independence. They shall be directed solely by the law.
4. No judge shall be removed from his duties before he reaches

the legally determined retirement age except under the following conditions:

- (a) When the Judicial Administration Council decides to remove him for violation of disciplinary rules or on grounds of gross incompetence or inefficiency; or
 - (b) When the Judicial Administration Council decides that a judge can no longer discharge his duty on account of illness; and
 - (c) When the State Council approves by a majority vote the decisions of the Judicial Administration Council.
5. In accordance with sub-Article 4 of this Article, when the Judicial administration Council decided that a judge has committed a breach of discipline, it may suspend a judge until the decision is approved by the State Council.
 6. The retirement age of a judge may not be extended beyond the legally determined retirement age.

Article 75

Jurisdiction and Structure of Courts

1. The judicial organ of the State comprises the State Supreme Court, High Court, and Wereda Court; First-Instance Judicial Authority of the State is vested in the Wereda Court.
2. State Supreme court:
 - (a) The highest and final judicial power over State matters;
 - (b) Exercise the jurisdiction of the Federal High court;
 - (c) Has power of cassation over any final court decision on State matters which contains a basic error of law. Particulars shall be determined by law.
3. State High Courts shall in addition to State jurisdiction exercise the jurisdiction of the Federal First-Instance Courts.

4. Decisions rendered by a State High Court exercising the jurisdiction of the Federal First-Instance Court are appealable to the State Supreme Court.
5. Decisions rendered by a State Supreme Court exercising the jurisdiction of the Federal High Court are appealable to the Federal Supreme Court.
6. The State Supreme Court shall draw up and submit directly to the State Council for approval the administrative budget of the State courts. It shall implement the budget upon approval.
7. The State Supreme Court shall request the Federal Supreme Court compensatory budget for those State courts concurrently exercise the jurisdiction of the Federal Courts.

Article 76

Appointment of Judges

1. The president and Vice-President of the State Supreme Court shall, upon recommendation by the Chief Executive, be appointed by the State Council.
2. The State Supreme court, High Court and Wereda Court judges shall, upon recommendation by the State Judicial Administration Council, be appointed by the State Council.
3. The State Judicial Administration Council, before submitting nominees of the States' Supreme and High Court judges and High and Wereda Court judges to the State Council, has the responsibility to solicit and obtain the views of the Federal Judicial Administration Council and Zonal or Special Wereda Administrative Council respectively on the nominees and to forward those views along with its recommendations. If the Federal judicial Administration Council does not submit its

view within three months, the State Council may grant the appointments.

4. Matters of code of professional conduct and discipline as well as transfer of judges of any court shall be determined by the States' Judicial Administration Council.

Article 77

Establishment of the State' Judicial Administration Council

1. The State's judicial Administration Council with the majority of judges, is hereby established.
2. The President of the State Supreme Court shall chair the Council.
3. The composition of the Council, powers and functions shall be determined by law.

Article 78

Council of Constitutional Inquiry

1. The Council of constitutional Inquiry is established by this Constitution.
2. The Council of Constitutional Inquiry shall have eleven members comprising:
 - (a) The President of the State Supreme Court, who shall serve as its President;
 - (b) The Vice-President of the State Supreme Court who shall serve as its Vice-President'
 - (c) Six legal experts, appointed by the State Council on recommendations by the Chief Executive, who shall have proven professional competence and high moral standing;

- (d) Three persons designated by the Speaker from the members of the Council of Nationalities.

Article 79

*Powers and functions of the Council of
Constitutional Inquiry*

1. The Council of Constitutional Inquiry shall have powers to investigate constitutional disputes. Should the Council, upon consideration of the matters, find it necessary to interpret the Constitution, it shall submit its recommendations thereon to the Council of Nationalities.
2. When the claim to the unconstitutionality of the laws, issued by the State organs arises and is submitted to it by a court or a party the dispute, the Council of Constitutional Inquiry, after examining the claim, shall submit its findings to the Council of Nationalities for a final decision.
3. When issues of constitutional interpretation arise in courts, the Council shall:
 - (a) Remand the case to the concerned court if it finds no reason for interpretation. An interested party dissatisfied with the decision may appeal to the Council of Nationalities.
 - (b) Submit its recommendation to the Council of Nationalities for a final decision if it believes there is a need for constitutional interpretation.

CHAPTER EIGHT
THE ZONE OR SPECIAL WEREDA
STRUCTION AND POWER

Article 80

Structure

1. The Zone or Special Wereda is an administrative hierarchy next to Region
2. Each Zone or Special Wereda shall comprise:
 - (a) The Zonal or Special Wereda Council;
 - (b) The Zonal or Special Wereda Administrative Council; and
 - (c) The Judiciary.

Article 81

*Powers and Functions of the Zonal
or Special Wereda Council*

1. The Zonal or Special Wereda Council shall be organized by the representatives elected for the Zonal or Special Wereda Council, including those elected for the State Council.
2. Without prejudice to the powers and functions of the Houses of Peoples' Representatives and the State Council, the Councils at the Zone or Special Wereda level shall exercise highest political powers.
3. Without prejudice to the provision of sub-Article 2 of this Article, each Zone or Special Wereda Council is accountable to the people which elected it, and shall have the power and functions to:
 - (a) Determine the working language;
 - (b) Protect the right of the Nationalities to speak, write and develop their languages, and preserve their history;

- (c) Without prejudice to the powers vested in the State Council in this Constitutions it shall issue laws on matters uncovered and that are consistent with the State and Federal laws. Law signed by the concerned Speaker shall be submitted to the Chief Executive thereby published in *Debub Negarit Gazeta*
- (d) Approve its own budget based upon budget allocated to it by the State Council;
- (e) Appoint the Speaker, Deputy Speaker and Chief Administrator from among members of the Zonal or Special Wereda Council;
- (f) Approve the appointment of the members of Zonal or Special Wereda Administrative Council;
- (g) Appoint Presidents and Vice Presidents of High and Wereda Courts, upon by recommendation by Chief Administrator from among judges of respective court:
- (h) Call and investigate the Chief Adminisistrator and other Zonal or Special Wereda officials conduct and discharge of its responsibilities.

Article 82

Leadership of the Zonal or Special Wereda Council

1. The Zonal or Special Wereda Council shall be preside by the Speaker and Deputy Speaker, which elected by a political party or political parties that has the greatest number of seats in the Council.
2. The power and functions entrusted to the Speaker and Deputy Speaker of the State Council shall accordingly, be applicable to Zonal and Special Wereda Councils.
3. The council shall organize the necessary sub-committees.

Article 83

Duration and meeting of the Council

1. The duration of the Zonal or Special Wereda Council shall be for a term of five years. Election for a new Council shall be concluded one month prior to the expiry of the Council's term. The new Council shall convene within fifteen days of the conclusion of the election.
2. The Council shall hold at least two sessions annually.
3. The presence of two-thirds of the members of the Council constitutes a quorum. The decision of the Council shall be made by the majority vote of the members.
4. The Speaker may call an extra ordinary meeting of the Council. He also obliged to call an extra-ordinary meeting at the request of more than one-thirds of the members.

Article 84

The Administrative Council

1. The Zonal or Special Wereda Administrative Council shall be executive organ, and, is accountable to Chief Administrator and Executive Council of, the Zonal or Special Wereda Council.
2. The Administrative Council shall consist Chief Administrator, Deputy Chief Administrator, and heads of the executive organs.
3. Members of the Administrative Council are collectively responsible for all decisions they make as a body.

Article 85
Powers and Functions of the
Administrative Council

The Zonal or Special Wereda Administrative Council shall:

1. Insure the implementation of the State and Federal laws and decisions in the Zonal or Special Wereda;
2. Decide, supervise and lead executive organs;
3. Draw up budget and submit it to the Zonal or Special Woreda Council, implement upon approval,
4. Formulate economic and social development policies and strategies that are consistent with the state policies and strategies; submit it to the Zonal or Special Woreda Council and implement same upon approval;
5. Insure the observance of law and order;
6. Issue laws that are consistent with the constitution and other laws;
7. Insure the preservation and take care of the antiquities and natural resources of the Zonal or Special Woreda;
8. Submit its view on the nominee judges of the High and Woreda Courts, to the State Judicial Administration Council;
9. Perform other duties that entrusted to it by the Executive Council and Zonal or Special Woreda Council;

Article 86
Appointment and Term of Mandate
of the Chief Administrator

1. The Chief Administrator shall be elected, upon recommendation by a political party, or political parties that have the greatest number of seats in the council.
2. Unless otherwise provided in this constitution, the term of

office of the Chief Administrator is for the duration of the mandate of the council.

Article 87
Powers and Functions of the
Chief Administrator

1. He is the Leader, Chairman of the Administrative Council and Administrator of the Zonal or Special Woreda.
2. He is accountable to the Zonal or Special Woreda Council and the Chief Executive and he shall:
 - (a) Direct, coordinate and represent the Administrative Council.
 - (b) Insure the proper implementation of the State and Federal Constitutions, policies, laws; regulations, directives, and programmes in the Zonal or Special Woreda.
 - (c) Select members of the Zonal or Special Woreda Council, and submit for approval. The Deputy Chief Administrator shall be elected from among members of the Zonal or Special Woreda Council;
 - (d) Direct and control, the security and police forces that maintain law and order;
 - (e) Direct and control the executive and sub-ordinate organs
 - (f) Submit periodical reports to Zonal or Special Woreda and to Chief Executive
 - (g) Consistent with the provision of Article 86(2) of this Constitution, the Chief Administrator shall call and open first session of the new Council;
 - (h) Select nominees for the post of the President and Vice-President of the High and Wereda Courts, from among judges of High or Wereda Court;

- (i) Perform other duties assigned to him by Zonal or Special Wereda Council and by Chief Executive.

Article 88

Powers and Functions of Deputy Chief Administrator

The Deputy Chief Administrator is accountable to the Chief Administrator and Administrative Council and shall:

- (a) Perform duties which shall be specially entrusted to him by the Chief Administrator.
- (b) Act on behalf of the Chief Administrator in his absence or unable to exercise his powers and functions.

Article 89

Office of Chief the Administrator

1. Office of Zonal Chief Administrator shall be directed by the head of office assigned by the Chief Administrator.
2. The power and functions of the Office of Chief Executive shall accordingly be applicable to the Office of Zonal or the Special Wereda of the Chief Administrator.

CHAPTER NINE

THE WEREDA ADMINISTRATION

Article 90

Structure

The Wereda Administration is next to Zonal Administration hierarchy and comprise:

1. The Wereda Council
2. The Wereda Administrative Council; and
3. The Wereda Court.

Article 91

Power and Function of the Wereda Administration

1. The Wereda Administration shall have all powers necessary to prepare, determine and implement within its own administrative region, plans of social services and economic development and to enforce laws, policies and directives issued by the Regional State.
2. Without prejudice to the powers and rights to develop its own region and determine its own internal affairs it shall be a subordinate to the Regional State and Zone.

Article 92

Election of Numbers of the Wereda Council and Accountability

1. Members of the Wereda Council shall be directly elected by the people reside in the Kebeles within the Wereda.
2. They shall be accountable to the people which elected them.

Article 93

Powers and Functions of Wereda Council

1. The Wereda Council is the highest authority of the Wereda. It is accountable to the people of the Wereda.
2. Without prejudice to sub-Article 1 of this Article, the Wereda Council shall have the following powers and functions:
 - (a) Approve social services economic development administrative plans, programmes and budget of the Wereda;
 - (b) Follow up the timely undertaking of the basic agricultural development activities throughout the Wereda, with special attention given to the accomplishment of the task with regard to the development, protect and care

- of natural resources;
- (c) Create the favorable condition and mobilize the people resident for development activities;
- (d) It shall elect the Speaker, Deputy Speaker and Chief Administrator as well as approve the appointment of the members of Wereda Administrative Council upon recommendation by the Chief Administrator;
- (e) Issue its own rules of procedure;
- (f) Insure the timely collection of land tax, agricultural income tax, agricultural products sales tax and other taxes and payments. The detail shall be determined by law;
- (g) Point out income resources other than those allocated and administered by the region; details shall be determined by law.
- (h) Consistence with Federal and Regional Constitutions and other laws, issue directives to ensure the peace and security of the Wereda;
- (i) Call and question the Chief Administrator and other officials and investigate the discharge of their responsibilities.

Article 94

The Leadership of the Council and the speaker

1. The Council preside by Speaker and Deputy Speaker, elected upon recommendation by political party or political parties that has greatest number in the Council.
2. Powers and functions specified for the Speaker of State Council in this Constitution is accordingly applied to the Speaker of Wereda Council.

Article 95 *Deputy Speaker*

1. The Deputy Speaker shall carry out responsibilities which shall be specifically entrusted to him by the Speaker.
2. Acts on behalf of the Speaker in his absence and when unable to carry out his power and functions.

Article 96 *Sessions and Term of Mandate*

1. The Wereda Council shall hold session every three month.
2. The presence at a meeting of two-thirds of the members of the Council constitutes a quorum. The decision of Council shall be passed by majority members present at meeting.
3. The term of council shall be five years. Election for a new Council shall concluded one month prior to the expiry of the Council's term. The new council shall convene within fifteen days of the conclusion of the election.
4. Meetings of the council shall be public. The Speaker may, call for an extraordinary meeting. Among the members of the Council if such a request is supported by a decision of one-third members, the Speaker obliged to call an extra-ordinary meeting.

Article 97 *Wereda Administrative Council*

1. The Administrative Council is the highest executive organ of the Wereda. It is responsible to Chief Administrator and Wereda Council.

2. The Administrative Council comprises the Chief and Deputy Administrators and heads of offices.

Article 98

Powers and Functions of Wereda Administrative Council

1. The Administrative Council shall:
 - (a) implement laws, regulations, policies, directives, plans and programmes issued by State and Federal Government;
 - (b) Coordinate the executive organs of the Wereda, follow up and supervise over their activities;
 - (c) Prepare the Wereda's annual budget, submit it to the Wereda Council and implement same upon approval;
 - (d) maintain peace and security of the Wereda and direct and coordinate police and security;
 - (e) Prepare socio-economic and administrative plans and submit it to Wereda Council for approval;
 - (f) It shall preserve, protect, develop natural resources and mobilize the inhabitants for development activities;
 - (g) preserve and take care for all antiquities found in the Wereda;
 - (h) perform other duties assigned to it by Wereda Council and Zonal Administrative Council.
2. In all its decision and actions taken in their government's authority, the member of Wereda Administrative Council are collectively responsible.

Article 99

Appointment and Term of Mandate of Wereda Chief-Administrator

1. The Chief Administrator elected upon recommendation by

political party or political parties that have greatest seats in the council.

2. Unless otherwise provided in this Constitution the term of office of Wereda Chief Administrator is for the duration of the mandate of Wereda Council.

Article 100

Powers and Functions of the Wereda Chief Administrator

1. The Administrator is the chairman of the Wereda Administrative Council and an Administrator of the Wereda.
2. The Chief Administrator is accountable to Wereda Council and Chief Administrator of the Zone and shall:
 - (a) Represent the Wereda Administration;
 - (b) Direct the Wereda Administrative Council;
 - (c) Insure the proper implementation, of Federal and State Constitutions, policies, laws, regulations, directives and programmes within the Wereda;
 - (d) Coordinate, direct, control over the members of Administrative Council, various institutions and Kebeles within the Wereda;
 - (e) Follow up and control timely preparation and implementation of social services economic development programmes and plans;
 - (f) Direct and control police and security forces, which are established to enforce laws and maintain order, peace and security of the inhabitants of the Wereda;
 - (g) Submit periodical report to Wereda Council, Wereda Administrative Council and Zonal Administration;
 - (h) Submit for approval to Wereda Council nominees for

membership of Wereda Administrative Council. The Deputy Chief Administrator should be the member of Wereda Council;

- (i) Without prejudice Article 99 sub-Article 2 of this Constitution, the Chief Administrator shall call the new Wereda Council for first session;
- (j) Perform other duties assigned to him by Wereda Council and Zonal Administrative Council.

Article 101

Powers and Functions of Wereda Deputy Chief Administrator
Deputy Chief-Administrator is accountable to Wereda Administrative Council and Chief Administrator and shall:

1. Act on behalf of the Chief Administrator in his absence and when unable to carry out his powers and functions.
2. Perform other duties assigned to him by Wereda Administrative Council and Chief Administrator.

Article 102

Wereda Administrative Office

1. Office of Wereda Chief Administrator shall be directed by head of office assigned by the Chief Administrator.
2. Powers and functions specified for office of State Executive in this Constitution shall accordingly applicable to office of Wereda Chief-Administrator.

CHAPTER TEN *THE KEBELE ADMINISTRATION*

Article 103

Structure and Accountability

1. The Kebele Administration is the last administrative hierarchy of the Region.
2. The Kebele Administration shall comprise:
 - (a) The Kebele Council.
 - (b) The Kebele Administrative Council; and
 - (c) The Social Court.

Article 104

The Kebele Council

1. The Kebele Council established to be the highest authority of the Kebele.
2. The members of the Kebele Council directly elected by the people and shall be accountable to people which elected them.

Article 105

Powers and Functions

The Kebele Council shall:

1. Issue directives on local matters in consistence with policies, laws, regulations, and directives enacted by its superior bodies;
2. Elect the Chief Administrator of the Kebele from among the members of Kebele Council. Approve the appointment of the members of the Kebele Administrative Council;
3. Approve the appointment of the judges of the social court nominated by the Chief Administrator;
4. Issue the guidelines for implementation of the socio-economic and administrative programmes and plans that handed down

by its superior bodies and follow up the implementation of the same;

5. Issue other plans important for inhabitants of the Kebele and following its implementation; a
6. Create suitable conditions in which the residents of the Kebele initiated for development, protection and care of natural resources and other development activities;
7. Insure the maintenance of peace, security and order as well as well observance of laws;
8. Call and question the Chief Administrator and other officials and investigate the discharge of their responsibilities.

Article 106

Leadership of the Kebele Council

1. The Kebele Council preside by Speaker and Deputy Speaker elected from among the members of the Council.
2. Powers and functions specified for the Speaker of State Council in this Constitution is accordingly applied to the Speaker of Kebele Council.
3. Act on behalf of the Speaker in his absence and when unable to exercise his powers and functions.
4. Perform other duties assigned to him by the Speaker.

Article 107

Sessions and Term of Mandate

1. The Kebele Council shall hold a session every month.
2. The presence of over two-thirds of, the members of the Council at a meeting constitutes a quorum. The decision of Council shall be passed by the majority of members present at a meeting.

3. The term of the Council shall be five years. Election for a new Council's shall be concluded one month prior to the expiry of the Councils term. The new Council shall convene within fifteen days of the conclusion of the election.
4. The Speaker of the council may call a meeting of the council when it is in reced. The speaker of the is also obliged to call a meeting of the council at the request of more than one third of the minister of council.

Article 108

The Kebele Administrative Council

1. The Kebele Administrative Council comprises the Chief and Deputy Chief Administrators, the elected heads of the workers of social and service rendering governmental institution within the Kebele. It is a subordinate body that implements laws, regulations and directives enacted by its superior bodies.
2. The Kebele Administrative Council is accountable to the Chief-Administrator, Kebele Council and Wereda or Municipal Administration.
3. The members of Kebele the Administrative Council shall individually and collectively direct and coordinate administrative functions of the Kebele.

In all its decisions and actions taken, the members of the Kebele Administrative Council are collectively responsible.

Article 109

Powers and Functions of the Kebele Administrative Council

1. Without prejudice to Article 108 sub-Article 1 of this Constitution, the Kebele Administrative Council shall:

- (a) Implement the development plans and programmes issued by Kebele Council, prepare its own development plan and submit it to the Council and implement upon approval;
 - (b) Follow up and control the implementation of plans of social services in the Kebele;
 - (c) ensure that preservation and development of the natural resource is performed highly, initiate and coordinate the people for development activities;
 - (d) maintain peace and security in the Kebele;
 - (e) It shall preserve and take care for all antiquities found in the Kebele, notify the means of its usage to superior bodies;
 - (f) perform other duties assigned by the Kebele Council.
2. The Kebele Administrative Council prepares plans of activities, follows up and evaluates same through timely contact.

Article 110

Appointment and Term of Mandate of the Kebele Chief Administrator

1. The Chief Administrator elected upon recommendation by political party or political parties that have greatest seats in the council.
2. Unless otherwise provided in this constitution the term of office of the Chief-Administrator is for the duration of mandate of the Kebele Council.

Article 111

Powers and Functions of the Kebele Chief Administrator

1. The Kebele Chief Administrator is accountable to the Kebele

Council and Wereda or Municipal Administration and he is an Administrator of the Kebele.

2. The Chief Administrator shall:
 - (a) Preside the meeting of the Kebele Administrative Council;
 - (b) Follow up and control the implementation of policies, laws, regulations, directives and plans issued by superior bodies;
 - (c) After checking by Administrative Council submit nominee judges selected for Social Court to Kebele Council for approval;
 - (d) Submit periodical report to the Administrative Council, Kebele Council and Wereda or Municipal Administration;
 - (e) Select the nominees, members of Administrative Council and submit to Kebele Council for approval. The Deputy Chief Administrator should be the member of Kebele Council;
 - (f) Without prejudice to Article 110 sub-Article 2 of this Constitution, he shall call the new Kebele Council for first session;
 - (g) Perform other duties assigned to him by concerned Wereda or Municipal Administration.

Article 112

Powers and Functions of Deputy Chief Administrator

Deputy Chief Administrator is accountable to Chief Administrator and Administrative Council and shall:

1. Act on behalf of the Chief Administrator in his absence and unable to exercise his powers and functions.

2. perform other duties assigned to him by Chief-Administrator and Adminsstrative Council.

Article 113

Kebele Administration Office

1. Kebele Administration Office served both for Administrative Council and Kebele Council.
2. The kebele administrator leads over the kebele office which the council's office activities are also being done have on the basis of Article 102 of this Constitutions, the duties of the speaker, Administration and the secretary are led and implemented separately.

Article 114

Kebele Social Court

1. The Kebele Social Court established by this constitution functions as a Kebele's social judiciary organ. The details shall be determined by law.
2. Judges of the Kebele Social Court shall be appointed according to Article 105 sub-Article 3 of this Constitution.

CHAPTER ELEVEN PRINCIPLES AND OBJECTIVES OF REGIONAL POLICY

Article 115

Objectives

1. Any governmental organ shall be guided by the principles and objectives mentioned in this Chapter in implementing the Federal and State Constitutions, other laws and polices.
2. In this Chapter, "Government" means The South Nations, Nationalities and Peoples' Regional State.

Article 116

Political Objectives

1. Guided by democratic principles, the Government shall promote and support the peoples self-rule at all levels.
2. The Government shall respect the identity of Nations, Nationalities and Peoples' and based on this to strengthen equality, unity and fraternity among them. It shall give special attention to the most backward nationalities and thereby bring their equality.

Article 117

Economic Objectives

1. The Government shall have the responsibility to formulate policy so that all residents of the State shall benefit from the Region's legacy of intellectual and material resoruces.
2. The Government shall have duty to ensure that all residents of the State get equal opportunity to improve their economic conditions and to promote equitable distribution of wealth among them.
3. The Government shall provide special assistance to nationalities that are least advantagous in economic and social development.
4. The Government shall take measures to avert natural and man made disasters, and in the event of disasters, to provide timely assistance to victims.
5. The Government shall have the responsibility to hold, on behalf of the people, land and other natural resources in order to deploy them for their common benefit and development.
6. The Government shall promote the participation of peoples in

the formulation of State development policies and programmes. It shall have the duty to support the initiative of peoples in their development endeavors.

7. The Government shall formulate a policy to ensure rapid development by combining the peoples intellect, labour and money. It shall make the people play a dynamic role in the regional economic development activities. Therefore, the people shall participate not only in the formulation of the policies but also in their implementation and evaluation.
8. The Government shall have the responsibility to ensure equal participation of women with their men counterparts in development endeavors.
9. The Government shall endeavor to protect and promote the health, welfare and living standards of the working population of the State.

Article 118

Social Objectives

1. To the extent the country's and the State's resources permit, policies shall aim to provide residents of the State the access to public health and education, clean water, housing, and social security.
2. Education shall be provided in a manner that is free from religious influence, political partisanship or cultural prejudices.

Article 119

Cultural Objectives

1. The Government shall have the duty to support the growth and enrichment of cultures and traditions that are compatible with fundamental rights and human dignity in accordance with the democratic norms provided in the Constitution.
2. The Government and all residents of the State shall have the duty to protect the State's natural endowments and historical antiquities.
3. The Government shall have the duty, to the extent its resources permit, to support the development of arts, science and technology.

Article 120

Environmental Objectives

1. The Government shall endeavor to ensure that all residents of the State live in a clean and healthy environment.
2. Any economic development measures shall not damage the safety of the environment.
3. People have the right to full consultation and to the expression of views in the planning and implementation of environmental policies and projects that affect them directly.
4. The Government and the residents of the State shall have the duty to protect their environment.

CHAPTER TWELVE

MISCELLANEOUS PROVISIONS

Article 121

Declaration of State of Emergency

1. According to Article 93 sub-Article 1(b) of the Federal and

Article 66 sub-Article 7 of this Constitution, the Executive Council shall have the power to decree a state of emergency should a natural disaster or an epidemic occur.

2. Within the fifteen days from adoption of decree of state of emergency, the Executive Council shall notify the Speaker to call the State Council for extra-ordinary meeting and submit the decree for approval. If not approved by a two-thirds majority vote of members of State Council the decree shall be repealed forthwith.
3. A state of emergency decreed by Executive Council, if approved by the State Council can remain in effect up to six months. The State Council may, by a two-thirds majority vote, allow the decree of state of emergency to be renewed every four months successively.
4. In the exercise of its emergency power the Executive Council can not, however, suspend or limit the rights provided for in Articles 15, 16, 18(1) and (2) 21 (1), 24(1), 25, 27(1) and 39 of this Constitution.

Article 122

State of Emergency Inquiry Board

1. The State Council, while declaring a state of emergency, shall simultaneously establish a State of Emergency Inquiry Board, comprising of seven persons to be chosen and assigned by the State Council from among its members and from legal experts.
2. The State of Emergency Board shall have the following powers and responsibilities:
 - (a) To make public within one month the names of all

individuals arrested on account of the state of emergency together with the reasons for their arrest;

- (b) To inspect and follow up that no measure taken during the state of emergency is inhumane;
- (c) To recommend to the Chief Executive or to the Executive Council corrective measures if it finds any case of inhumane treatment;
- (d) To ensure the prosecution of perpetrators of inhumane acts;
- (e) To submit its views to the State Council on request to extend the duration of the state of emergency.

Article 123

The Auditor General

1. The Auditor General shall, upon recommendation of the Chief Executive, be appointed by the State Council; and accountable to the State Council.
2. The Auditor General shall audit and inspect the accounts of State administrative institutions and other agencies and submit report thereon to the State Council.
3. The Auditor General shall draw up its annual budget and submit directly to the State Council for approval.
3. The powers and functions of Auditor General shall be determined by law.

Article 124

Initiation of Amendments

Any proposal for constitutional amendment, if supported by a two-thirds majority vote in the State Council or by two-thirds

majority vote in the Council of Nationalities or when one-thirds of the Councils of Zonal or Special Wereda by a majority vote, shall be submitted for discussion and decision to the general public and to those whom the amendment of the Constitution concerned.

Article 125

Amendment of the Constitution

1. This very Article can be amended only in the following manner:
 - (a) When all Zonal and Special Wereda Councils, by a majority vote, approve the proposed amendments;
 - (b) When State Council and Council of Nationalities, by a two-thirds majority vote, approve the proposed amendments.
2. Provisions of Chapter Two and Three of this Constitutions amended only if provisions of Chapter Two and Three of the Federal Constitution are amended. The amendment shall be ratified according to sub-Article 3 of this Article.
3. All provisions of this Constitution other than that specified in sub-Article 2 of this Article can be amended only in the following manner:
 - (a) When the State Council and Council of Nationalities, in a joint session, approve a proposed amendment by a two-thirds majority vote; and
 - (b) When two-thirds of the Councils of Zonal and Special Wreda approve the proposed amendment by majority votes.

Article 126

Judges Appointed Prior to this Constitution

Judges appointed in accordance with Constitution of Southern Nations, Nationalities and Peoples' Regional State, Proclamation No-1/1995, shall be considered as it appointed according to this constitution.

Article 127

Applicability of Existing Laws

Any laws, regulations, directives, consistent with this Constitution shall be applicable in the Region.

Article 128

The Version with Final Legal Authority

The Amharic version of this Constitution shall have the final legal authority.

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